

25STCV19289 25STCV19289

County: los-angeles

Division: Civil Law and Motion

Department: 729

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Case Number: 25STCV19289 Hearing Date: August 19, 2026 Dept: 729

Superior Court of California

County of Los Angeles

DEPARTMENT

729

TENTATIVE RULING

JARIN

TUMWATTANA,

vs.

JARI

KUNKAEW, et al.

Case No.:

25STCV19289

Hearing Date: August 19, 2026

Defendants

Jari Kunkaew's, John Mousessian aka George Mousessian's, and George H. Williams'

unopposed motion for an order dismissing Plaintiff Jarin Tumwattana's

Complaint in his capacity as Power of Attorney for Narumol Tumwattana and

Parinya Tumwattana, individuals and beneficiaries of the Estate of Suvapee Tumwattana is denied.

Defendant

Impac Mortgage Corp. dba Cashcall Mortgage's unopposed joinder to the motion to dismiss is denied.

Defendants Jari Kunkaew ("Kunkaew"), John Mousessian aka George Mousessian ("Mousessian"), and George H. Williams ("Williams") (collectively, "Moving Defendants") move unopposed for an order dismissing Plaintiff Jarin Tumwattana's Complaint in his capacity as Power of Attorney for Narumol Tumwattana and Parinya Tumwattana, individuals and beneficiaries of the Estate of Suvapee Tumwattana ("Tumwattana") ("Plaintiff") on the grounds that Plaintiff failed to file an amended complaint within the time period permitted, and therefore this action should be dismissed. (Notice Motion, pg. 2; C.C.P. §§581(f)(2), (4).)

Defendant Impac Mortgage Corp. dba Cashcall Mortgage ("Impac") ("Joining Defendant") joins Moving Defendants' motion to dismiss. (Notice of Joinder, pgs. 2-3; C.C.P. §§581(f)(2), (4).)

Background

Plaintiff filed the operative complaint on July 2, 2025.

On April 6, 2026, this Court ruled on Non-Moving Defendant Point Digital Finance, Inc.'s ("Point Digital") unopposed demurrer to the Complaint, sustaining the demurrer with 30 days leave to amend. (4/6/26 Minute Order.) The Court notes that Plaintiff did not file an amended complaint.

On August 4, 2026, Judgment as to Point Digital was entered. (8/4/26 Judgment as to Point Digital.)

On May 11, 2026, Moving Defendants filed the instant motion. On July 15, 2026, Joining Defendant filed its joinder to the motion. As of the date of this hearing no opposition has been filed.

Legal Standard

C.C.P. §581(f)(2) provides that the “court may dismiss the complaint as to that defendant” . . . “after a demurrer to the complaint is sustained with leave to amend and the plaintiff fails to amend it within the time allowed by the court and either party moves for dismissal.” (C.C.P. §581(f)(2).)

Discussion

Moving Defendants' motion to dismiss

Plaintiff's Complaint is denied.

Plaintiff has not filed a first amended complaint as the facts applied to Non-Moving Defendant Point Digital.

However, Moving Defendants did not properly demur to the Complaint and no demurrer with leave to amend applies as to them. In other words, the Complaint remains the operative pleading for Moving Defendants and Joining Defendant.

Accordingly, Moving Defendants' and Joining Defendants' motion is denied.

Conclusion

Moving Defendants' motion to dismiss

Plaintiff's Complaint is denied.

Joining Defendant's motion to dismiss

Plaintiff's Complaint is denied.

Moving Party to give notice.

Dated:

August _____, 2026

Hon. Daniel M. Crowley

Judge of the Superior Court